CHAPTER 54 Advocate General of the State

The Constitution (Article 165) has provided for the office of the advocate general for the states.[1] He/she is the highest law officer in the state. Thus he/she corresponds to the Attorney General of India.

Appointment And Term

The advocate general is appointed by the governor. He/she must be a person who is qualified to be appointed as a judge of a high court. In other words, he/she must be a citizen of India and must have held a judicial office[2] for ten years or been an advocate of a high court for ten years[3].

The term of office of the advocate general is not fixed by the Constitution. Further, the Constitution does not contain the procedure and grounds for his/her removal. He/she holds office during the pleasure of the governor. This means that he/she may be removed by the governor at any time. He/she may also quit his/her office by submitting his/her resignation to the governor. Conventionally, he/she resigns when the government (council of ministers) resigns or is replaced, as he/she is appointed on its advice.

The remuneration of the advocate general is not fixed by the Constitution. He/she receives such remuneration as the governor may determine.

Duties And Rights

As the chief law officer of the government in the state, the duties of the advocate general include the following:

1. To give advice to the government of the state upon such legal matters which are referred to him/her by the governor.
2. To perform such other duties of a legal character that are assigned to him/her by the governor.
3. To discharge the functions conferred on him/her by the Constitution or any other law.

The advocate general has the right to speak and to take part in the proceedings of both the Houses of the state legislature or any committee of the state legislature of which he/she may be named a member, but without a right to vote. He/she also enjoys all the privileges and immunities that are available to a member of the state legislature.

Table 54.1 Articles Related to Advocate-General of the State at a Glance

Article No.	Subject-matter
165.	Advocate-General of the State
177.	Rights of Advocate-General as respects the Houses of State Legislature and its Committee
194.	Powers, privileges and immunities of Advocate-General